

**KERNOCHAN CENTER FOR LAW, MEDIA AND THE ARTS
COLUMBIA LAW SCHOOL**

**BEFORE THE
U.S. COPYRIGHT OFFICE**

Section 1201 Study

Docket No. 2015-8

**Reply Comments of the Kernochan Center for Law, Media and the Arts
Columbia Law School**

Introduction

The Kernochan Center for Law, Media and the Arts appreciates the opportunity to respond to the Request for Additional Comments by the US Copyright Office concerning its study of Section 1201, 81 Fed. Reg. 66,296 (Sept. 27, 2016).

The Kernochan Center for Law, Media, and the Arts at Columbia Law School is one of the leading centers for intellectual property research in the United States. Its faculty and staff dedicate their research and writing to copyright, trademarks, and related areas as they concern traditional and emerging media, entertainment and the arts. The Center offers students an in-depth program of instruction, lectures, internships and externships while providing symposia, lectures, research studies and publications to the broader legal community. Founded as the Center for Law and the Arts, it was renamed in 1999 to honor Professor John M. Kernochan, its founder and a pioneer in teaching copyright in American law schools.

Section 1201 of Title 17 was designed to encourage copyright owners to develop new distribution models for their content, and in particular, to encourage distribution of that content over the internet. Section 1201 has been a success, as many commenters have attested. Section 1201's success should not immunize it from amendment, but it does indicate that the broad amendments offered by some commenters should be rejected, as they would unquestionably undermine the goals and effect of the law. (We refer, for example, to suggestions that the anti-circumvention laws be repealed in their entirety, that circumvention for any non-infringing purpose be allowed, etc.). We believe all suggested amendments should be approached with

caution, and that the Copyright Office should recommend amendments only on the basis of a well-established record. New or expanded permanent exemptions should be recommended where, and only to the extent that, parties have consistently sought and been granted exemptions in the past through the rulemaking process.

1. Proposals for New Permanent Exemptions

Judged against these criteria, there are only two suggested new permanent exemptions that we would support:

Assistive Technologies for Use by Persons Who are Blind, Visually Impaired, or Print Disabled. In earlier comments, we stated that Congress should consider an appropriately drafted permanent exemption to facilitate access to literary works by blind, visually impaired or print-disabled persons. The history of the triennial rulemaking indicates that this is an exemption that has been regularly sought and granted, and there are strong public policy reasons for raising it to the level of a permanent exemption. In our view, the exemption granted in the 2015 rulemaking is an appropriate formulation for a permanent exemption. We recognize that some commenters would prefer a broader exemption, but they will still have the rulemaking process available to them if their ability to make lawful uses in this regard is unreasonably constrained.

Device Unlocking. The contours of the exemptions granted for this purpose in the rulemaking proceedings have changed over time (and will likely continue to change). We nevertheless believe that a permanent exemption to allow circumvention to unlock mobile devices *solely for the purpose* of “enabling them to connect to the network of a different mobile wireless carrier” is warranted, based on the records in the rulemakings to date, as well as on Congressional action on this issue.¹ Rather than creating a broad and open-ended description of the devices eligible for this exemption, it is preferable to use the exemption as formulated in the 2015 rulemaking proceeding, and add devices pursuant to the triennial proceeding, to the extent justified by the evidence presented.

International considerations. As we observed in our earlier comments, the WIPO Copyright Treaty and the WPPT give contracting parties latitude with respect to the specific

¹ See Unlocking Consumer Choice and Wireless Competition Act, Pub. L. 113-144, sec. 2(b), 128 Stat. 1751 (2014).

terms of their legislation.² We believe that the two amendments we support here are consistent with US obligations under the WIPO treaties.

As we discussed in our earlier comments, some of the bilateral trade agreements that the US has with other countries contain more specific obligations with respect to technological protection.³ The exemptions we support here, however, are based on an established track record in the triennial rulemaking proceeding, which should be an important consideration in evaluating implications for US obligations under such agreements, and the potential effect on other countries' perceptions of their obligations under those agreements.

2. Proposed Amendments to Existing Exemptions

We are not in a position to judge the current state of reverse engineering, encryption research or security testing, or the extent to which such endeavors are seriously hampered by the proscriptions of chapter 12. In general, however, we would not support an amendment to an existing exemption absent evidence that the beneficiaries have in triennial rulemaking proceedings consistently requested, and been granted, exemptions reasonably equivalent to the amendment they seek. If the statutory structure is deficient, presumably the beneficiaries would have come forward with evidence to justify additional or broader exemptions in the rulemaking process.

Where the records of previous rulemaking proceedings indicate that the potential beneficiaries have not sought an exemption in past rulemaking proceedings, or sought an exemption but failed to provide adequate supporting evidence, there is insufficient basis to create or broaden a permanent exemption.

3. Anti-Trafficking Provisions

² WIPO Copyright Treaty, art. 11, Dec. 20, 1996, 36 I.L.M. 65 (1997), *available at* http://www.wipo.int/treaties/en/text.jsp?file_id=295166#P87_12240 (“Contracting Parties shall provide adequate legal protection and effective legal remedies against the circumvention of effective technological measures that are used by authors in connection with the exercise of their rights under this Treaty or the Berne Convention and that restrict acts, in respect of their works, which are not authorized by the authors concerned or permitted by law.”) The WIPO Performances and Phonograms Treaty has a similar provision. WIPO Performances and Phonograms Treaty, art. 18, Dec. 20, 1996, 36 I.L.M. 76 (1997), *available at* http://www.wipo.int/treaties/en/text.jsp?file_id=295577.

³ See, e.g., the U.S.-Colombia Agreement, art. 16.7 (4) (2006), *available at* <https://ustr.gov/trade-agreements/free-trade-agreements/colombia-fta/final-text>.

The anti-trafficking provisions in section 1201 are an essential part of the statutory scheme. There will almost always be technically-savvy individuals who can circumvent or override technological protection, but unauthorized access to copyrighted works can be kept in check if such persons are not permitted to circulate tools or provide services to enable the general public to circumvent. Without protection against trafficking in devices or services, TPMs would be largely ineffective. Any changes to the anti-trafficking provisions should be approached with great caution.

a. *Implied right for the beneficiary of an exemption to “make a tool” for his or her own use.* Concerning whether the Office should recommend that Congress clarify that the statute should expressly permit the beneficiary of an exemption to make a tool solely for his or her own use in circumventing: We question whether there are examples of situations where the beneficiary of an exemption has stated that it has not taken, and cannot take advantage of an exemption to which it is entitled, even though it has the required expertise, because the law prevents it from creating a tool or mechanism. It is unclear whether such a recommendation is necessary. Most of the changes to the anti-trafficking provision provisions that commenters have suggested are far broader; this issue doesn’t seem to be the crux of their claims.

b. *Third-party assistance.* The Request for Additional Comments observed that some parties have argued that “in certain circumstances” third party assistance in circumventing technological access controls could “fall outside” the scope of the anti-trafficking provision and therefore be permissible. Both 17 U.S.C. sections 512(a)(2) and 512(b)(1) are broadly worded. The parties urging such an interpretation apparently believe that third party assistance might not be embraced under providing a service or any of the other activities prohibited by these sections. The Merriam-Webster dictionary includes, among its definitions of “service,” “help, use, benefit,” “contribution to the welfare of others,” and “a helpful act.”⁴ It seems as though any plausible interpretation of “service” would include third party assistance, and we have not heard a persuasive argument to the contrary.

In conclusion, section 1201 was an attempt to provide protection to copyrighted works to foster innovation in content delivery. Congress drafted section 1201, including its exemptions

⁴ Merriam Webster Dictionary, definition of “service,” <http://www.merriam-webster.com/dictionary/service>. See also dictionary.com definition of service, <http://www.dictionary.com/browse/services> which includes “an act of helpful activity; help; aid. . . .”

and limitations, to balance the interests of the various stakeholders. Congress included the rulemaking as a means to refine that balance when necessary. Commenters have urged numerous permanent changes to section 1201 that would make it easier for users to legally circumvent technological access controls. Before recommending any such changes, the Office should consider carefully whether they would undermine the fundamental goals of the statutory scheme.

Respectfully submitted,

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